

- (i) Failing to confer in person, by telephone, or by letter with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, if the section governing a particular discovery motion requires the filing of a declaration stating facts showing that an attempt at informal resolution has been made.

In addition, CCP §2031.310(h) provides that “[t]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

Here, the court finds that reasonable sanctions are warranted in the reduced, but reasonable amount \$3,566.00.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2507898	AMERICAN EXPRESS NATIONAL BANK VS STORER	MOTION TO SET ASIDE

Tentative Ruling: No tentative ruling. Hearing will be conducted on Wednesday ,August 5, 2026 at 8:30 a.m. in Department PS2.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2509122	RODRIGUEZ VS DEPARTMENT OF MOTOR VEHICLES	HEARING ON WRIT OF MANDATE

Tentative Ruling: Denied.

Respondent to submit proposed judgment within 5 days of this order and provide notice pursuant to CCP 1019.5.

Petitioner, Corina T. Rodriguez, seeks a writ of mandate commanding DMV to set aside its orders suspending her driver’s license upon finding Petitioner had violated the provision of the Vehicle Code prohibiting the operation of a motor vehicle while under the influence of alcohol and refusal to submit to a blood alcohol test. Specifically, Petitioner challenges the DMV’s July 12, 2025, order suspending or revoking Petitioner’s privilege to operate a motor vehicle and the subsequent decision by the DMV on September 25, 2025, sustaining the suspension or revocation of Petitioner’s driving privilege, which became effective on October 4, 2025.

On December 11, 2025, Petitioner filed a Petitioner for Writ of Mandate with this Court (Code Civ. Proc., § 1094.5) to set aside DMV’s order of suspension.

Administrative Record

The complete Administrative Record (“AR”) consists of approximately 87 pages of documents in a single volume of documents. (See Notice of Lodging Certified Administrative Records.)

Underlying Offense Causing Suspension

Vehicle code section 23152 prohibits anyone under the influence of alcoholic beverage to drive a vehicle. (Veh. Code, § 23152(a).) Under California's implied consent law, "[a] person who drives a motor vehicle is deemed to have given his or her consent to chemical testing of his or her blood or breath for the purpose of determining the alcoholic content of his or her blood, if lawfully arrested for" a violation of Vehicle Code provision prohibiting the operation of a motor vehicle while under the influence of alcohol or drugs. (Veh. Code, § 23612(a)(1)(A).)

Under California's "administrative per se law" (Veh. Code, § 13353), upon receipt of the officer's sworn statement that the officer had reasonable cause to believe the person had violated a Vehicle Code provision prohibiting the operation of a motor vehicle while under the influence of alcohol or drugs (Veh. Code, § 23152), and the person refused to submit to, or did not complete, a chemical test or tests after being requested by the officer under the implied consent law (Veh. Code, § 23612), the DMV is required to suspend or revoke the person's driving privilege for given length of time depending on the applicable circumstances. (Veh. Code, § 13353(a)(1)-(3).) When a person is arrested for driving under the influence and refusals to comply with testing, the arresting officer or the DMV must serve the person with a notice of the order of suspension or revocation on the applicable DMV form. (Veh. Code, § 13353(c).)

Upon immediate suspension of the driver's license of a person arrested for driving under the influence and has refused to submit to testing (Veh. Code, § 13353(a)), the DMV automatically reviews the merits of the suspension order to determine by a preponderance of the evidence whether: (1) "the peace officer had reasonable cause to believe the person had been driving a motor vehicle" in violation of the provision of the Vehicle Code prohibited driving under the influence of alcohol (Veh. Code, § 23152); (2) "the person was placed under arrest," (3) "the person refused to submit to, or did not complete, the test or tests after being requested by a peace officer," and (4) "the person had been told that his or her driving privilege would be suspended or revoked if he or she refused to submit to, or did not complete, the test or tests." (Veh. Code, §§ 13553(d)(1)(4), 13557(b)(1)(A)-(C).) In its review, the DMV must consider the sworn report submitted by the arresting peace officer or any other evidence accompanying the report. (Veh. Code, § 13557(a).) The DMV's determination must be made before the effective date of the suspension and is final unless a hearing is requested. (Veh. Code, § 13557(b)(4), (c).)

The person whose license was suspended may request the DMV to hold a contested review hearing on its decision. (Veh. Code, § 13558(a), (c)(1).) The only issues at the hearing will be the facts considered in the DMV's automatic internal review (Veh. Code, § 13557(b)(3)(A)-(C)), that is, whether (1) "the peace officer had reasonable cause to believe the person had been driving a motor vehicle" in violation of the provision of the Vehicle Code prohibited driving under the influence of alcohol (Veh. Code, § 23152); (2) "the person was placed under arrest," and (3) "the person refused to submit to, or did not complete, the test or tests after being requested by a peace officer." (Veh. Code, § 13557(b)(1).) Evidence presented at the hearing must not be limited to the evidence presented at the DMV's internal review pursuant to section 13557. (Veh. Code, § 13558(b).)

"A person whose license suspension is upheld [at the administrative per se hearing] may seek judicial review of an adverse decision by way of petition for writ of administrative mandate." (*Dyer v. Department of Motor Vehicles* (2008) 163 Cal.App.4th 161, 167, Veh. Code, § 13559, subd. (a); Code Civ. Proc., § 1094.5.)

Standard of review

“A determination by the DMV to suspend an individual’s driver’s license is subject to judicial review in the trial court by means of a petition for writ of mandate.” (*Bussard v. Department of Motor Vehicles* (2008) 164 Cal.App.4th 858, 862.) Pursuant to Code of Civil Procedure section 1094.5, the trial court must exercise its independent judgment upon the evidence if the decision of an administrative agency will substantially affect a “fundamental vested right.” (*Berlinghieri v. Department of Motor Vehicles* (1983) 33 Cal.3d 392, 395.)

“Review is strictly limited to the record of the administrative hearing; the trial court may not consider any other evidence.” (*Dyer v. Department of Motor Vehicles, supra*, 163 Cal.App.4th at 167.) “‘The superior court uses its independent judgment to review DMV hearing decisions which suspend driver’s licenses. [Citation.] Under this standard of review, the court must independently weigh the evidence and may make its own findings. [Citation.] It must set aside the administrative decision where the agency’s findings are not supported “by the weight of the evidence.” ’ [Citation.]” (*Id.* at 167-168.)

Petitioner challenges the validity of the orders suspending her driving privilege, contending that the evidence admitted at the administrative per se hearing was insufficient to prove that she was driving, and therefore the arrest was unlawful. In particular, Plaintiff challenges the DMV’s reliance on two civilian statements which appeared in the arresting officer’s CHP 555 and 556 reports and the DS-367 statement, contending the statements are inadmissible hearsay. Plaintiff contends that no civil witness gave sworn testimony, no sworn declarations were offered, and no hearsay exception was established for the officer’s accounts of the witnesses’ statements. Plaintiff relies on the evidentiary rules governing administrative hearings as articulated by the Supreme Court in *Lake v. Reed* (1997) 16 Cal.4th 448 holding that hearsay evidence “‘may be used for the purpose of supplementing or explaining other evidence but shall not be sufficient in itself to support a finding unless it would be admissible over objection in civil actions.’ ” (*Id.* at 459; Gov. Code, § 11513(c).) Plaintiff contends that the hearing officer admitted the hearsay statements of the civilian witnesses into evidence over Plaintiff’s objection. According to Plaintiff, when stripped of the inadmissible hearsay, the weight of the evidence does not support a finding that the officer had reasonable cause to believe Petitioner was the driver. On that basis, Plaintiff contends that the DMV failed to prove, by admissible evidence, that the arresting officer had reasonable cause to believe Petitioner had been driving.

Here, Petitioner correctly outlines evidentiary rules of the administrative hearings. “Government Code section 11513 addresses the admissibility of evidence in administrative hearings.” [Citation.] (*Kazelka v. Department of Motor Vehicles* (2025) 109 Cal.App.5th 1239, 1247.) It states in relevant part: “The hearing need not be conducted according to technical rules relating to evidence and witnesses, except as hereinafter provided. Any relevant evidence shall be admitted if it is the sort of evidence on which responsible persons are accustomed to rely in the conduct of serious affairs, regardless of the existence of any common law or statutory rule which might make improper the admission of the evidence over objection in civil action.” (Gov. Code, § 11513(c).) It further goes on to state: “Hearsay evidence may be used for the purpose of supplementing or explaining other evidence [at an administrative hearing] but over timely objection shall not be sufficient in itself to support a finding unless it would be admissible over objection in civil actions.” (Gov. Code, § 11513, subd. (d).)

Administrative records submitted in this case show that Petitioner objected to the unsworn statement of civilian witnesses as inadmissible hearsay. The hearing officer overruled the objection and sustained the license suspension. Petitioner points out that Officer Delgado did not personally observe Petitioner behind the wheel of her car at the time of his arrival but merely recounted the statements given by the witnesses who informed the officer that Petitioner was in

the driver's seat at the time of the collision and reversing her vehicle. Petitioner points out that these statements were included in the officer's reports, which he thereafter forwarded to the DMV. Petitioner contends that the statements embedded in the officer's reports cannot be used to prove that Petitioner was driving and therefore, the DMV has failed to determine by the preponderance of the evidence the first prong of the issues in a section 13353 administrative per se proceeding which is that "the peace officer had reasonable cause to believe the person had been driving a motor vehicle" in violation of the provision of the Vehicle Code prohibited driving under the influence of alcohol (Veh. Code, § 23152) (Veh. Code, §§ 13357(b)(1), 13358(b).)

The DMV concedes that the witness testimonies were hearsay evidence, but it argues that the testimonies were nevertheless competent and sufficient to prove that Petitioner was driving the car because hearsay evidence may establish probable cause for arrest. In support of this contention, they cite two appellate court cases *Mueller v. Department of Motor Vehicles* (1985) 163 Cal.App.3d 681 and *Cantrell v. Zolin* (1994) 23 Cal.App.4th 128. In *Mueller, supra*, the court held that "[h]earsay evidence has universally been held to establish probable cause," and thereon concluded that citizen witnesses' hearsay statements included in a police report were sufficient evidence to support a finding that the police officer had reasonable cause to believe that the driver had been driving while intoxicated and was therefore properly arrested. (*Id.* at 685.) In *Cantrell, supra*, the court found that a deputy's statement observing the motorist weaving was not inadmissible hearsay offered to prove the motorist was in fact weaving but was properly admitted to prove that the arresting officer had reasonable cause to believe the motorist was driving under the influence. (*Id.* at 133.) It should be noted, however, both of these cases were decided before *Lake v. Reed, supra*, 16 Cal.4th 448. *Mueller, supra*, did not consider the admissibility of the hearsay statements in light of the evidentiary rules under Government Code section 11513 as outlined in *Lake, supra*. *Cantrell, supra*, is distinguishable to this case because it did not involve reliance on inadmissible hearsay in sustaining a suspension order; the court determined that the officer's statement was not hearsay.

Nevertheless, here, the records show that the DMV's decision comports to the evidentiary rule of section 11513, subdivision governing administrative hearings. The DMV considered only the reports submitted by the arresting officer (CHP 555 and 556 reports and the DS-367 statement). Neither the arresting officer nor the civilian witnesses testified at the hearing. In the reports, it was noted that the arresting officer, Delgado, upon arriving at the scene observed Petitioner exhibited objective signs of intoxication such as swaying back and forth, slurred speech, and emitting odor of alcohol. When Petitioner was asked by the officer to submit to a field sobriety test, Petitioner refused to do so and refused to answer further questions without a lawyer. These facts are not disputed by Petitioner. The officer's reports were properly admitted into evidence at the administrative per se hearing. "[I]n an administrative hearing, '[a]ny relevant evidence shall be admitted if it is the sort of evidence on which responsible persons are accustomed to rely in the conduct of serious affairs....' [Citation.]" (*MacDonald v. Gutierrez* (2004) 32 Cal.4th 150, 158-159.) Pursuant to Government Code section 11513, subdivision (c), " '[a] police officers report, even if unsworn, constitutes "the sort of evidence on which responsible persons are accustomed to rely in the conduct of serious affairs.'" [Citation.] " (*Id.* at 159.) Furthermore, the officer's reports would be excepted from the hearsay rule under the public employee records exception for reason the officer wrote the report within the scope of his duty as a public employee, the report was made near the time of the accident, and method and time of preparation were such as to indicate report's trustworthiness. (*Lake v. Reed, supra*, 16 Cal.4th at 468; Evid. Code, § 1280.)

The officer's reports also included statements made by Petitioner and eyewitnesses, which the DMV relied on as additional factors in finding that the officer lawfully arrested Petitioner upon finding that she was driving the blue Chevrolet. As Petitioner has pointed out, the admissibility of the civilian statements embedded in the reports are hearsay and, unless a hearsay exception is established, they may only be used for the purpose of supplementing or explaining other evidence

but “shall not be sufficient in itself to support a finding unless it would be admissible over objection in civil actions.’ ” (*Id.* at 459; Gov. Code, § 11513(c).) However, the DMV’s findings do not solely rely on the civilian statements. The officer’s reports recounted that Petitioner also made a statement to the officer that she told her daughter to take the wheel at Cabazon and that she was not the one driving the blue Chevrolet at the time of collision. The licensee’s admission is excepted from the hearsay rule as a party admission. (*Id.* at 468; Evid. Code, § 1220.) As in *Lake*, the hearsay accounts of eyewitnesses indicating the arrestee was the driver are admissible in the administrative hearing to explain and supplement Petitioner’s admission that she had been driving at some point before the collision. (*Id.* at 458, fn. 6.)

As noted by the Supreme Court in *Troppman v. Valverde* (2007) 40 Cal.4th 1121, neither Vehicle Code sections 23612 (the implied consent law) and section 13353 (the license suspension/revocation law) “require evidence that actual driving occurred immediately prior to the arrest for driving while under the influence.” (*Id.* at 1137.) The court reasoned that “the primary focus of both statutes ... is upon whether the officer had probable cause to believe the person had been driving while under the influence, and therefore whether the person lawfully was arrested – and that revocation or suspension of a license under section 13353 does not require proof beyond the four factors listed in sections 13353, subdivision (d), and section 13557, subdivision (b)(1), and made exclusively by section 13358, subdivision (c)(1). In other words, no requirements exists, under either the implied consent law, section 23612, or under the license suspension/revocation statute, section 13353, of proof that the person actually was driving immediately prior to his or her arrest for driving while under the influence.” (*Ibid.*) Here, Petitioner does not deny the fact of admitting to the officer that she, in fact, was driving at some point in time before Petitioner allegedly had her daughter take the wheel at Cabazon because she was too intoxicated to drive. This admission is sufficient to meet the first prong of the showing required for section 13353 administrative per se proceeding.

Based on the foregoing, the records show the DMV has determined by preponderance of evidence that Officer Delgado had reasonable cause to believe the Petitioner had been driving a motor vehicle under the influence of alcohol. (Veh. Code, § 13558(b).)